



EAGLE MOUNTAIN PLANNING COMMISSION MEETING MINUTES

August 23, 2022, 5:30 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

COMMISSION MEMBERS PRESENT: Jason Allen, Matthew Everett, Christopher Pengra, and Erin Wells. Commissioner Jeremy Bergener was excused.

ELECTED OFFICIALS PRESENT ELECTRONICALLY: Councilmember Brett Wright.

CITY STAFF PRESENT: Steve Mumford, Assistant City Administrator/Community Development Director; Todd Black, Wildlife Biologist/Environmental Planner; Robert Hobbs, Planning Manager; David Stroud, Senior Planner; and Fionnuala Kofoed, Director of Administrative Services/City Recorder.

5:30 P.M. – Eagle Mountain City Planning Commission Work Session

Commissioner Everett called the meeting to order at 5:57 p.m.

1. Discussion Items

1.A. Hidden Hollow Development Residential Concept Plans

Planning Manager Robert Hobbs presented the concept plans. The development agreement and associated build-out plans for the Lower Hidden Valley project were valid by the end of June 2011. The project was understood to cover approximately 244.60 acres of ground per the agreement. The current concept plan review application indicates the main Lower Hidden Valley project's land area is 248.2 acres in size per the application form and 247.90 per the proposed plotting plan, statistical summary table. Lower Hidden Valley was approved in 2011 to contain a maximum, theoretical residential dwelling unit count of 1,256 at full build-out. Given the topography, the concept review application indicates that 1,225 dwelling units are the actual maximum quantity currently believed to be able to be developed on the property. In addition to developing the original project as approved, the applicants wish to add 9.3 acres of adjoining land in the area abutting the main project to the south. It is the applicants' intent to develop 48 residential dwelling units on the 9.3 acres. The residential zone must be a predominately residential use, but certain commercial and mixed-use developments are allowed as a conditional use within the project.

Mr. Hobbs explained that as the current agreement predates the Wildlife Corridor Overlay Zone, the City cannot impose the requirements upon the project. However, amending the master development agreement (MDA) allows for the wildlife corridor to be introduced into negotiations.

Wildlife Biologist/Environmental Planner Todd Black said he provided the applicants with the information regarding the wildlife corridor. He will review the GIS data of the area and evaluate the wildlife impact of the proposed density and safety mitigation options.

Applicant representative Chris Hupp with Psomas clarified that they are not seeking to amend the MDA as they desire to retain the densities within the MDA. They plan to relocate a road to meet the topography of the site; blasting would be needed to build the road as presented. They are submitting a joint application with the adjacent Perry Homes property to demonstrate the connectivity and relation between the properties. The plan provides 150-foot widths of open space and park areas for wildlife migration.

Assistant City Administrator/Community Development Director Steve Mumford explained the Psomas property represents remnant parcels that were a part of the Lower Hidden Valley Master Development Plan (MDP). The top northeastern portion of the Lower Hidden Valley MDP, owned by Perry Homes, was incorporated into a separate MDA that excludes the Psomas parcels. Those parcels were rezoned and given uses density approvals contingent upon an MDA; however, no development agreement was approved. The Perry Homes MDA either needs to be amended to add the Psomas property or a separate rezone or agreement needs to be created for those parcels.

Dan Reeve with Perry Homes stated they had been acting under a different understanding and will need to further research the matter. They are not interested in opening their MDA for renegotiation. Their involvement is to coordinate access with the adjacent property owners.

Discussion verified that the access to the south of the project connects to Red Pine Road and the north access connects to a future road in Circle Five Ranch, another Psomas development.

Mr. Mumford recommended removing the access to the north and adding an access to connect to Lone Tree Parkway to direct traffic to an intersection with a traffic signal.

Discussion ensued regarding the location of the townhomes as stipulated in the MDA and potential traffic routes and access connections.

Mr. Reeve stated they could amend the concept plan to reduce the number of townhomes and provide the preferred layout if they were not required to amend the MDA or lose their density vesting.

Commissioner Everett verified with the applicants that the topography allowed for development within the City's slope requirements as the City Council is unlikely to be in favor of or to approve blasting. He expressed concern with the number of townhomes in consideration of their location in relation to current major roadways given the unknown timeframe for a major road in the area and the proposal for a front-loaded, potentially garage-dominate townhome product.

Commissioner Pengra concurred with concerns regarding the location of the proposed density in relation to the road network.

Commissioner Wells suggested more differentiation in the colors designating the lot size categories on the concept plan. She noted concerns the Commission has expressed with other applications with five-foot side yard setbacks and recommended adjusting the plan to have ten-foot setbacks on one side. She beseeched the applicants to be open to working with the City to preserve the wildlife corridor.

Commissioner Allen was not in favor of having the backyards of single-family homes face the roadway. He agreed with the suggestion to move the higher density area closer to the main road to reduce traffic and increase safety.

6:30 P.M. – Eagle Mountain City Planning Commission Policy Session

Commissioner Everett called the meeting to order at 6:39 p.m.

2. Pledge of Allegiance

Commissioner Everett led the Pledge of Allegiance.

3. Declaration of Conflicts of Interest

None.

4. Approval of Meeting Minutes

4.A. August 9, 2022 Planning Commission Minutes

MOTION: *Commissioner Everett moved to approve the August 9, 2022 minutes as amended. Commissioner Pengra seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☒ <i>Jeremy Bergener</i>
☒ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>
☒ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>
☒ <i>Erin Wells</i>	☐ <i>Erin Wells</i>	☐ <i>Erin Wells</i>	☐ <i>Erin Wells</i>

The motion passed with a unanimous vote.

5. Status Report

Mr. Mumford reviewed the planning items discussed and voted upon during the August 16, 2022 City Council meeting.

6 Action and Advisory Items

6.A. ACTION ITEM/PUBLIC HEARING – Site Plan Review for an LDS North Stake Center church building minor expansion

Mr. Hobbs presented the request for a minor building expansion for the Heatherwood Church on a 3.453-acre lot in Heatherwood on the Green Phase 1. The proposal adds/extends the enclosed building space to the eastern end of the building. The addition would eliminate 14 parking spaces along the eastern side of the building. The remaining 215 parking spaces would satisfy the City requirement that there be 1 space per every 20 square feet of chapel assembly area. The addition does not create height, setback, or building expansion design issues.

Commissioner Everett opened the public hearing at 6:46 p.m. As there were no comments, he closed the hearing.

Discussion ensued regarding a potential Municipal Code amendment to allow for similar applications to be a building permit with staff-level approval.

MOTION: *Commissioner Pengra moved to recommend approval to the City Council of the site plan for the LDS North Stake Center church building minor expansion. Commissioner Wells seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
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☒ <i>Erin Wells</i>	☐ <i>Erin Wells</i>	☐ <i>Erin Wells</i>	☐ <i>Erin Wells</i>

The motion passed with a unanimous vote.

6.B. ACTION ITEM/PUBLIC HEARING – The Church of Jesus Christ of Latter-day Saints meetinghouse site plan

Senior Planner David Stroud presented the site plan for a Church of Jesus Christ of Latter-day Saints meeting house at 1407 Shep's Ridge Road on a 4.20-acre site, lot 306, in Overland Phase A Plat 3. The plan consists of a meetinghouse, parking, pavilion, and storage building. The use, parking, lighting, and landscaping meet Municipal Code requirements. The landscaping plan utilizes crushed rock, boulders, and native grasses. The applicant is requested to be able to use 1.5-inch caliper native trees because the variety is not available in the required 2-inches. The height of the top of the roof is 32 feet 2 inches and the top of the spire is 68 feet 8 inches. The exterior materials include stone, glass, fiberboard siding, and asphalt shingles.

Staff recommends the Planning Commission forward a positive recommendation to the City Council regarding the site plan of a church meetinghouse at 1407 Shep's Ridge Road subject to the following condition(s):

1. Redlines corrected prior to City Council submittal; and

2. Native species trees may be 1.5-inch caliper, if 2-inch caliper cannot be purchased.

Commissioner Wells suggested the removal of any nonfunctional turf used only for aesthetical appeal.

Commissioner Everett verified with the applicant that the screening requirements would be met with the installation of berms to shield headlights and that they are willing to relocate the parking islands to meet spacing standards.

Commissioner Everett opened the public hearing at 6:55 p.m. As there were no comments, he closed the hearing.

MOTION: *Commissioner Pengra moved to recommend approval to the City Council of the site plan for the Church of Jesus Christ of Latter-day Saints meetinghouse in the Overland development at 1407 Shep Ridge Road with the following conditions:*

- 1. Redlines shall be corrected prior to City Council submittal; and*
- 2. Native species trees may be 1.5-inch caliper, if 2-inch caliper cannot be purchased.*

Commissioner Allen seconded the motion.

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
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☒ <i>Erin Wells</i>	☐ <i>Erin Wells</i>	☐ <i>Erin Wells</i>	☐ <i>Erin Wells</i>

The motion passed with a unanimous vote.

6.C. ACTION ITEM – Third Amendment to Amended and Restated Master Development Agreement for Overland Development and Pony Express Parcel.

Mr. Stroud presented the item. The current MDA requires a clubhouse or medium park for Village 2 prior to the 200th dwelling unit occupancy. The applicant requests an amendment to move the requirement to the 500th dwelling due to infrastructure issues. The first amendment to the MDA was a similar request to alter the requirement for the clubhouse in Village 1 from the permit for 150th dwelling to the 350th dwelling. Staff recommends, based upon the previous amendment and the reasons explained by the applicant, that the Planning Commission forward a positive recommendation to the City Council regarding the proposed Third Amendment to the Amended and Restated Master Development Agreement for Overland Development and Pony Express.

Applicant representative Brad Mackay explained that by the time the sewer and utility lines reach the location of the park; they will have constructed over 200 platted lots. Delaying the requirement

until the occupancy permit for the 500th dwelling will allow them to run the utilities and facilitate the infrastructure for the elementary school rather than having a developed, isolated park until the homes can be completed. The construction activities for the homes would impact the useability of the park. The residents in Village 2 have access to the clubhouse, pool, and pocket park with a bicycle pump track in Village 1 and the other parks within Overland. Village 2 has approximately 675 total units.

Commissioner Wells stated that although she is concerned with Village 2 being almost completed prior to the installation of the park, she understands the reasoning for the request.

Commissioner Everett agreed delaying the requirement would reduce the impact of adjacent home construction once the park is completed. Nevertheless, he is slightly hesitant to approve the request due to the 500th dwelling unit being later in the development.

Commissioner Pengra said Ivory Homes has provided a product that has added value to the valley bridging the gap between the Ranches and the City Center. As it is in the best interest of the developer to build a quality product and amenities in a timely manner, he is amenable to the request to delay the park requirement and feels it is a practical accommodation.

Commissioner Allen stated he was amenable to the request because the residents will have access to completed amenities in other villages in the Overland development.

MOTION: *Commissioner Allen moved to recommend approval to the City Council of the third amendment to the amended and restated master development agreement for the Overland development and Pony Express Parcel. Commissioner Pengra seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
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☒ <i>Erin Wells</i>	☐ <i>Erin Wells</i>	☐ <i>Erin Wells</i>	☐ <i>Erin Wells</i>

The motion passed with a unanimous vote.

6.D. ACTION ITEM/PUBLIC HEARING – Porter's Crossing Town Center MDP & MDA Amendment and Rezone

Mr. Mumford presented the amendment and rezone. The existing Porter's Crossing Town Center MDA (2016) included the contemplation of a recreation center, senior housing, institutional use, commercial use, and apartments (in addition to the areas already developed for commercial and residential uses). Some of these uses are no longer contemplated or desired in this project by the applicant, and the applicant has additional ideas for the project, so they are proposing amendments to the MD and MDA. They have also responded to the requests by the City and have added

commercial property to the front of their project where there were previously 180 apartments. The Planning Commission and City Council reviewed a concept plan for this project a couple of times during the last year, and the applicant is now proposing the amendments for review.

Mr. Mumford reviewed the history of the project, the terms of the current MDP, and funding, location, and size issues that made the original plan no longer viable.

The proposed MDP includes the following:

- Pods 1 and 2: Commercial development, including retail, office, and possible hotel uses
- Pods 9a and 9b: 156 apartments (three-story buildings, 12 units per building) and 29 townhomes, pool, clubhouse, parking, etc.
- Pod 10: 33 townhomes, parking, playground
- Pod 15: open space and future RV storage or nursery, pickleball court
- A new road from St. Andrews Drive to the northern portion of the property, stubbing north as well

In order to be compliant with the City's Future Land Use Map, staff recommends an amendment to Neighborhood Residential Two and Three. The trails for the project will surround and bisect the development and connect to the regional trail in the area. The applicant has been working with Kern River Gas Transmission Company to address concerns with the plans for the land above the utility easement. Staff recommended removing the roundabout to add additional parking. Parking has been added in the northeast parking, around the roundabout, and in a few other locations; however, staff still has concerns with the distance between the parking stalls and the units. The applicant is working with the fire marshal to ensure the private road is wide enough to accommodate fire apparatus. The flat design of the roof of the building is to stay under the 35-foot building height limitation. The traffic study concluded that the addition of the project as presented would result in immediate failure of the Ridley's Family Market's southeast access and Porter's Crossing. Without mitigation, the southeast and southwest project accesses with Pony Express Parkway will fail before 2027.

Recommended mitigation necessary to accommodate the project, without considerations of additional growth within the City, include:

- Installing duel southbound left-turn lanes on Porters Crossing and Pony Express Parkway,
- Installing southbound and westbound right-turn pockets on Porters Crossing and Pony Express Parkway,
- Striping the northbound left-turn pocket on the southeast Ridley's access and Porters Crossing, and
- Restricting the southwest project access at Pony Express Parkway to only right-in/right-out turning movements.

Due to issues with noticing the application, staff recommends for the Planning Commission to table the application with direction to the applicants for when the item returns.

Applicant representative Khosrow Semnani said they have asked their engineer to remove the roundabout to add additional parking. They are also adding additional pavilions and benches. The private road will be widened and made a public road. Their engineers have been working with the

gas company to meet the utility easement requests and requirements. The designs and number of bedrooms in the proposal are place savers and might change. The final plans will have a mixture of one-bedroom and two-bedroom units. There is an average of 2.3 parking spaces per unit, with 1.3 parking spaces within proximity to the units.

Scottie Duclos with Hales Engineering said during the peak hour, the queue for the traffic signal blocks the southeast Ridley's Family Market exit and is difficult to mitigate.

Mr. Mumford explained that the party responsible for paying for traffic mitigation measures depends upon the background service levels prior to a project. In this study, the double left-turn lanes would be the City's responsibility and the other measures would be caused by the project and are the responsibility of the applicant.

Commissioner Everett opened and continued the public hearing at 7:50 p.m.

Discussion ensued regarding the zoning categories of the units and the transitioning requirements.

Commissioner Everett reiterated his support of the commercial portion of the proposal. However, the traffic mitigation needs to be resolved. He requested the addition of a design element to add articulation to the apartment building roofs. The design of the front-loaded garages needs to not be garage dominant.

Commissioner Allen agreed with concerns regarding the distance of the parking from the units. He would prefer to have open space near the multifamily units rather than the applicant paying a fee-in-lieu. As long as the mitigation measures address the traffic problems, the commercial is a beneficial tradeoff for the proposed units.

Commissioner Wells advocated for functional open space near the multifamily units and excluding decorative grass to support water conservation.

Commissioner Pengra expressed support for the proposal contingent upon the final design of the units. He feels the one-car units provide an affordable, entry point to homeownership. He suggested adding terraces to the top of the apartment building as a method to increase articulation and design. He thanked the applicant for providing commercial uses.

MOTION: *Commissioner Everett moved to table the Porter's Crossing Town Center Master Development Plan, and rezone, and Master Development Agreement for the purpose of ensuring noticing is compliant with Municipal Code and continuing the public hearing until a future meeting. Commissioner Pengra seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
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☒ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>

☒ **Erin Wells**

☐ **Erin Wells**

☐ **Erin Wells**

☐ **Erin Wells**

The motion passed with a unanimous vote.

**6.E. ACTION ITEM PUBLIC HEARING – Various City Proposed Code Amendments
Modifying Certain Public and Private Right(s)-of-Way (ROW) Standards**

Mr. Hobbs presented potential amendments to the following sections of Eagle Mountain Municipal Code:

- 16.35.070(J) Street Design – to require private streets to meet the same standards as public streets.
- 16.35.070(L) Traffic Calming – the addition of allowable traffic calming measures and design elements.
- 16.35.080(B) Street Trees – limiting approved trees to class 1 types only to mitigate road and sidewalk damage by tree roots.
- 16.35.130 Tables – changes to local street width standards.
- 16.35.140 Diagrams – removal of the diagrams for a 50-foot rural and 53-foot local right-of-way and the addition of a 50-foot rural right-of-way and a 61-foot local right-of-way.

Mr. Hobbs stated the committee drafting the standards discussed cost and maintenance as well as safety and speed concerns for the 61-foot right-of-way compared with roads being reduced to one lane due to street parking.

Commissioner Everett opened the public hearing at 8:32 p.m. As there were no comments, he closed the hearing.

Commissioner Pengra said he feels safety goals can be accomplished with a narrower street cross-section than proposed with the 61-foot local road. He believes a six-foot emergency lane coupled with ten-foot travel lanes can accommodate four vehicles. Even a 59-foot cross section would be a significant increase from the current 53-foot local road standard. Street parking is not ideal, especially during the winter. Eagle Mountain schedules routine upkeep of roads which minimizes the long-term costs of maintenance and repairs. The layout of the City results in more miles of road lanes than most other cities have which inflates the budget. Widening the road width standards could result in a situation requiring raising taxes to support road maintenance funds.

Mr. Hobbs explained that some cities have 8-foot emergency lanes; concern with vehicles projecting into the travel lane is one of the reasons for the 7-foot emergency lane recommendation.

Commissioner Allen concurred with Commissioner Pengra regarding the impact of the cost and maintenance of the proposed width and a preference for a 59-foot right-of-way. He suggested amending the verbiage on Table 16.35.130(b) Right-of-Way Classification to clarify when the listed items are required per side or on one side of a right-of-way.

Commissioner Wells stated as she feels that narrower streets promote slower speeds appropriate for a local road, she is unsure if she can support a 59 or 61-foot width. If the City is determined to widen the local road standard, she would be in favor of a 57-foot right-of-way with 10-foot

drive lanes and 5-foot emergency lanes. She supports the additional traffic calming options and prefers the verbiage to remain “traffic calming improvements and designs *shall* be constructed on streets,” rather than the proposal to amend *shall* to *may*.

Commissioner Everett said he is amenable to the proposed street trees and rural street standards. He supports amendments to Table 16.35.130(b) to clarify and standardize the requirements. He expressed concern with the addition of “mid-road islands, placed either as traffic calming devices and/or aesthetic planters that split travel lanes, shall not be allowed at subdivision entrances,” because prohibiting the islands would prevent the benefit of the aesthetical uniqueness created by the features. He suggested allowing islands farther back from the intersection to facilitate the movement of commercial trucks, trailers, and other large vehicles. He agrees with Commissioner Wells that it is better to stipulate that traffic calming measures *shall* be constructed rather than *may* be constructed. He recommended rewording the second paragraph in EMMC 16.35.070(L) to remove the word *fast*. After consideration and discussion, he is no longer in favor of a 61-foot local road standard and prefers the 57-foot local street option.

Commissioner Pengra noted that due to the lack of striping on local roads, there will not be an indication of the separation of the drive and emergency lane. He is willing to support the 57-foot local street option.

Discussion ensued regarding the widening of the street requiring additional passes of snowplows and traffic calming measures options.

MOTION: *Commissioner Everett moved to recommend approval to the City Council of the amendments to Eagle Mountain Municipal Code Chapter 16.35 Development Standards for Required Public Facilities with the following changes:*

1. 16.35.070(L) Traffic Calming:

- a. “Traffic calming improvements and design shall be constructed on local streets classified by the city as “local(s);”*
- b. “Mid-road islands, placed either as traffic calming devices and/or aesthetic planters that split travel lanes, shall not be allowed at subdivision entrances,” shall be reworded to permit the design features but prohibit them within 10 feet of an intersection;*
- c. “Traffic calming design elements shall only include any, or a mixture of, the following: street layouts that incorporate multiple acute angled curves and/or purposely designed intersection or roadway elements (e.g., bulb or bump-outs, planter islands, chokers, etc. but not speed humps, bumps or significant gutters) that encourage drivers to reduce speeds, and/or conveniently placed collector roads that take travel time pressure off of local streets by providing fast connections between neighborhoods and between neighborhoods and commercial areas or main city gateway roads,” shall be altered to amend the word “fast;”*

2. *16.35.130 Tables: the Local Streets column shall be amended as follows:*
 - a. *Right-of-way row: 57 feet,*
 - b. *Planter Strip Width row: 6 feet,*
 - c. *Number of Emergency Lanes row: 2,*
 - d. *Emergency/Parking Lane Width row: 6 feet; and*
 - e. *Lane Width row: 9 feet;*
 3. *The Local Road illustration shall be amended to reflect a 57-foot right-of-way; and*
 4. *Illustrations of the allowed traffic calming design elements shall be added to the applicable sections of Chapter 16.35.*
- Commissioner Wells seconded the motion.*

AMENDED MOTION: *Commissioner Everett moved to recommend approval to the City Council of the amendments to Eagle Mountain Municipal Code Chapter 16.35 Development Standards for Required Public Facilities with the following changes:*

1. *16.35.070(L) Traffic Calming:*
 - a. *“Traffic calming improvements and design shall be constructed on local streets classified by the city as “local(s);”*
 - b. *“Mid-road islands, placed either as traffic calming devices and/or aesthetic planters that split travel lanes, shall not be allowed at subdivision entrances,” shall be reworded to permit the design features but prohibit them within 10 feet of an intersection;*
 - c. *“Traffic calming design elements shall only include any, or a mixture of, the following: street layouts that incorporate multiple acute angled curves and/or purposely designed intersection or roadway elements (e.g., bulb or bump-outs, planter islands, chokers, etc. but not speed humps, bumps or significant gutters) that encourage drivers to reduce speeds, and/or conveniently placed collector roads that take travel time pressure off of local streets by providing fast connections between neighborhoods and between neighborhoods and commercial areas or main city gateway roads,” shall be altered to amend the word “fast;”*
 2. *16.35.130 Tables: the Local Streets column shall be amended to reflect the Local Street Option – 57’ presented in the staff report;*
 3. *The Local Road illustration shall be amended to reflect a 57-foot right-of-way; and*
 4. *Illustrations of the allowed traffic calming design elements shall be added to the applicable sections of Chapter 16.35.*
- Commissioner Wells seconded the motion.*

Those Voting Yes

☒ *Jason Allen*

Those Voting No

☐ *Jason Allen*

Those Abstaining

☐ *Jason Allen*

Those Absent

☐ *Jason Allen*

☐ Jeremy Bergener	☐ Jeremy Bergener	☐ Jeremy Bergener	☒ Jeremy Bergener
☒ Matthew Everett	☐ Matthew Everett	☐ Matthew Everett	☐ Matthew Everett
☒ Chris Pengra	☐ Chris Pengra	☐ Chris Pengra	☐ Chris Pengra
☒ Erin Wells	☐ Erin Wells	☐ Erin Wells	☐ Erin Wells

The motion passed with a unanimous vote.

Commissioners Everett and Wells requested for the verbiage in EMMC 16.35.070(L) to be amended to improve clarity and remove redundancies.

6.F. ACTION ITEM / PUBLIC HEARING – Alpine School District Elementary School #110 Site Plan

Mr. Stroud presented the elementary school site plan for Overland and reviewed the approval criteria in EMMC 17.100.050. The building is 83,697 square feet, including the mezzanine. The plan provides 161 parking stalls. The road in front of the school will be 64 feet wide to provide additional parking and facilitate student pick-up and drop-off. The applicant has been directed to add additional trees to the right-of-way landscaping.

Staff recommends the Planning Commission forward a positive recommendation to the City Council regarding the Alpine School District 110 site plan in Overland Phase 2, for the reasons set forth in the staff report and the meeting, with the following conditions:

1. Redlines shall be corrected prior to scheduling with the City Council.
2. Recordation of a final plat.

Commissioner Allen noted that street trees could potentially cause safety risks by decreasing motorists' visibility of students.

Commissioner Everett opened the public hearing at 9:14 p.m. As there were no comments, he closed the hearing.

Applicant representative Scott Johnson with Alpine School District inquired regarding the redline for parking lot light poles to be no taller than 12 feet. He said taller poles have been used at other schools because they increase light coverage and safety.

Mr. Mumford clarified that commercial parking lots may have light poles up to 17 feet.

Discussion ensued regarding the bus drop-off, parking locations, and drop-off and pick-up queue lengths.

Mr. Mumford stated that staff is working with Ivory Homes to add an additional access to Pony Express Parkway to northeast impart to improve traffic flow for the school.

MOTION: ***Commissioner Pengra moved to recommend approval to the City Council of the Alpine School District Elementary School 110 site plan in Overland Phase 2 with the following conditions:***

1. *Redlines corrected prior to scheduling with the City Council; and*
 2. *The recordation of a final plat.*
- Commissioner Everett seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
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☒ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>
☒ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>
☒ <i>Erin Wells</i>	☐ <i>Erin Wells</i>	☐ <i>Erin Wells</i>	☐ <i>Erin Wells</i>

The motion passed with a unanimous vote.

6.G. ACTION ITEM/PUBLIC HEARING – Overland Village 2 Phase A Preliminary Plat Amendment

Mr. Stroud presented the preliminary plat amendment.

The application proposes the following:

- Increase acreage from 89.29 acres to 91.62 acres
- Increase density from 375 dwellings with 4.20 units/acre to 388 dwellings with 4.23 units/acre (the maximum density in Overland Village 2 is 743 dwellings)
- Decrease open space from 10.01 acres to 9.17 acres

Staff recommends the Planning Commission forward a positive recommendation to the City Council regarding the proposed amended Overland Village 2 Phase A preliminary plat with the following conditions:

1. The City Council approves the 3rd master development agreement amendment to require the Club Ivory or medium park at the 500th platted dwelling.
2. The amended preliminary plat is subject to the original conditions of approval, where applicable.
3. Redlines corrected prior to scheduling with City Council.

Applicant representative Brad Mackay said when he visited the site, he realized the plan had engineering issues and met with the City Engineer to discuss project options. They extended the cross street closer to Old Airport Road and plan to build single-family homes with daylight basements which allows the removal of the retaining wall. They relocated the townhomes and replaced them with a variety of single-family lot sizes. At the request of staff and Alpine School District, they connected Kern Mountain Road to Pony Express Parkway and widened Wildcat Peak to 64 feet to provide additional street parking and facilitate traffic flow to and from the elementary school. The amended plan allows the increase of the sewer sizes rather than the addition of a separate sewer along Old Airport Road. Although the total open space is reduced, the changes in road design remove the bisecting of the open space by the road. Their preference is to build a 4.5 to 5-acre park rather than another pool and clubhouse because the residents will have access to the existing pool and clubhouse.

Commissioner Everett opened the public hearing at 9:40 p.m. As there were no comments, he closed the hearing.

MOTION: *Commissioner Wells moved to recommend approval to the City Council of the preliminary plat amendment for Overland Village 2 Phase A with the following conditions:*

- 1. The City Council approves the 3rd master development agreement amendment to require the Club Ivory or medium park at the 500th platted dwelling;*
 - 2. The amended preliminary plat is subject to the original conditions of approval, where applicable; and*
 - 3. Redlines corrected prior to scheduling with City Council.*
- Commissioner Allen seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☒ <i>Jeremy Bergener</i>
☒ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>
☒ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>
☒ <i>Erin Wells</i>	☐ <i>Erin Wells</i>	☐ <i>Erin Wells</i>	☐ <i>Erin Wells</i>

The motion passed with a unanimous vote.

7. Discussion Items

8. Next scheduled meeting

The next Planning Commission meeting is scheduled for September 13, 2022.

Commissioner Everett stated that he will be attending the September meetings virtually.

9. Adjournment

MOTION: *Commissioner Allen moved to adjourn at 9:46 p.m. Commissioner Wells seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☒ <i>Jeremy Bergener</i>
☒ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>
☒ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>
☒ <i>Erin Wells</i>	☐ <i>Erin Wells</i>	☐ <i>Erin Wells</i>	☐ <i>Erin Wells</i>

The motion passed with a unanimous vote.

The meeting was adjourned at 9:46 p.m.

Approved by the Planning Commission on September 13, 2022.


Steve Mumford (Signed: 2022 17:09 MDT)

Steve Mumford, AICP
Assistant City Administrator/Community Development Director

0761_001

Final Audit Report

2022-09-14

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